

Court No. - 35

Case :- WRIT - C No. - 54627 of 2017

Petitioner :- Ruby Ice Factory, Thru Prop.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Arvind Srivastava

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Bharati Sapru,J.

Hon'ble Siddharth,J.

As prayed, put up on 20.11.2017 as fresh.

Order Date :- 17.11.2017

pks

Court No. - 35

Case :- WRIT - C No. - 54627 of 2017

Petitioner :- Ruby Ice Factory, Thru Prop.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Arvind Srivastava

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Bharati Sapru, J.

Hon'ble Siddharth, J.

Learned counsel for the respondents is handing over the financial assessment bill to the petitioner today as well as a judgement dated 09.3.2017 in which the same petitioner appeared before the Court in Writ Petition No. 8168 of 2017. That too, it is a case of theft, learned counsel for the petitioner, Sri Arvind Srivastava is not aware of this judgement.

Put up this case day after tomorrow i.e. 22.11.2017 before the appropriate Bench.

Order Date :- 20.11.2017

Ruchi Agrahari

Court No. - 1

Case :- WRIT - C No. - 54627 of 2017

Petitioner :- Ruby Ice Factory, Thru Prop.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Arvind Srivastava

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Govind Mathur,J.

Hon'ble Ashok Kumar,J.

Learned counsel appearing on behalf of the respondents submits that a writ petition of similar nature filed by the same petitioner, numbered as WRIT - C No.8168 of 2017, M/s Rubi Ice Factory through its proprietor Nagina Bagum vs. Dakshinanshal Vidyut Vitarad Nigam Ltd. & another, has already been considered and decided by this Court vide judgment and order dated 9.3.2017.

Let this writ petition be listed along with the record of WRIT - C No.8168 of 2017 in the next cause list.

Order Date :- 22.11.2017

pk

(Ashok Kumar,J.)

(Govind Mathur,J.)

Court No. - 1

Case :- WRIT - C No. - 54627 of 2017

Petitioner :- Ruby Ice Factory, Thru Prop.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Arvind Srivastava

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Govind Mathur, J.

Hon'ble Ashok Kumar, J.

Learned counsel for the respondents wants some time to file a preliminary counter affidavit to the writ petition.

Time prayed for, is allowed.

Let this petition be listed on 6th December 2017.

Order Date :- 1.12.2017

S.S.

(Ashok Kumar, J.)

(Govind Mathur, J.)

Court No. - 1

Case :- WRIT - C No. - 54627 of 2017

Petitioner :- Ruby Ice Factory, Thru Prop.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Arvind Srivastava

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Govind Mathur,J.

Hon'ble Ashok Kumar,J.

A short counter affidavit has been filed on behalf of the respondent nos 2 and 3 the same be taken on record.

The counsel for the petitioner wants some time to go through the counter affidavit filed on behalf of the respondents.

Time prayed for, is allowed.

Put up on 8th December, 2017.

Order Date :- 6.12.2017

SK Srivastava

(Ashok Kumar,J.) (Govind Mathur,J.)

Court No. - 1

Case :- WRIT - C No. - 54627 of 2017

Petitioner :- Ruby Ice Factory, Thru Prop.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Arvind Srivastava

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Govind Mathur,J.

Hon'ble Ashok Kumar,J.

A rejoinder affidavit filed today on behalf of the petitioner the same be taken on record.

The application is preferred to implead the Executive Engineer, Electricity Distribution Division, Dibiyapur Auraiya, Dakshinanchal Vidyut Vitaran Nigam Ltd., Sub Divisional Magistrate, Bidhuna, District Auraiya and Tehsildar, Tehsil Bidhuna, District Auraiya.

For the reasons given in the application, the impleadment application is allowed. The Executive Engineer, Sub Divisional Magistrate and Tehsildar referred above be impleaded as party respondent nos. 4,5 and 6 respectively.

Necessary correction is required to be made by the counsel for the petitioner by tomorrow.

On the request of the learned counsel for the petitioner, let this writ petition be listed on 14th December, 2017.

Till then no coercive action shall be taken against the petitioner.

Order Date :- 8.12.2017

SK Srivastava

(Ashok Kumar,J.) (Govind Mathur,J.)

Court No. - 1

Case :- WRIT - C No. - 54627 of 2017

Petitioner :- Ruby Ice Factory, Thru Prop.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Arvind Srivastava

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Govind Mathur, J.

Hon'ble Ashok Kumar, J.

Hearing is continued.

Let the writ petition be listed on 19.12.2017. It will be taken for hearing immediately after fresh cases.

Interim order already in operation shall remain in currency till further orders.

Order Date :- 14.12.2017

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(Ashok Kumar, J.)

(Govind Mathur, J.)

Court No. - 1

Case :- WRIT - C No. - 54627 of 2017

Petitioner :- Ruby Ice Factory, Thru Prop.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Arvind Srivastava

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Govind Mathur,J.

Hon'ble Ashok Kumar,J.

As prayed, let this petition for writ be listed on 21.12.2017.

Order Date :- 19.12.2017

Rameez

(Ashok Kumar,J.) (Govind Mathur,J.)

Court No. - 1

Case :- WRIT - C No. - 54627 of 2017

Petitioner :- Ruby Ice Factory, Thru Prop.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Arvind Srivastava

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Govind Mathur,J.

Hon'ble Ashok Kumar,J.

Let this petition for writ be listed on 08.01.2018, as prayed.

Order Date :- 21.12.2017

Shubham

(Ashok Kumar,J.) (Govind Mathur,J.)

Court No. - 40

Case :- WRIT - C No. - 54627 of 2017

Petitioner :- Ruby Ice Factory, Thru Prop.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Arvind Srivastava

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Shashi Kant,J.

Sri Arvind Srivastava, learned counsel for the petitioner prays that the matter be taken up tomorrow.

Put up tomorrow i.e. 05.04.2018. By which time, office is directed to trace out the short counter affidavit filed on behalf of the respondent nos. 2 and 3, which is not available on record.

Order Date :- 4.4.2018

Monika

Court No. - 40

Case :- WRIT - C No. - 54627 of 2017

Petitioner :- Ruby Ice Factory, Thru Prop.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Arvind Srivastava

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Rajiv Gupta, J.

It has been pointed out by the Bench Secretary that according to the office report dated 05.04.2018, there is no short counter affidavit traceable except for the application dated 13.02.2018 moved on behalf of the petitioner and the rejoinder affidavit already on record.

It is thus clear that the short counter affidavit had been served on the learned counsel for the petitioner to which he has filed a rejoinder affidavit. It is stated by the learned Standing Counsel that the short counter affidavit might have been misplaced as it had been tendered before the Court itself.

In view of this situation that emerges it would be appropriate that the record is reconstructed and, we accordingly direct the learned Standing Counsel to file a copy of the short counter affidavit through an affidavit and an application afresh before this Court by the next date.

List in the next cause list on 12th April, 2018.

Order Date :- 5.4.2018

M. ARIF

Court No. - 40

Case :- WRIT - C No. - 54627 of 2017

Petitioner :- Ruby Ice Factory, Thru Prop.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Arvind Srivastava

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Shashi Kant,J.

Learned counsel for the petitioner states that he will be filing the correct copy of the documents that have already been filed.

Learned Standing Counsel has filed a copy of the short counter affidavit that was missing from the records. A copy the same has been served upon the learned counsel for the petitioner.

Learned counsel for the petitioner may file appropriate affidavit by the next date fixed.

List in the next cause list.

Order Date :- 12.4.2018

KA

Court No. - 38

Case :- WRIT - C No. - 54627 of 2017

Petitioner :- Ruby Ice Factory Thru Prop.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Arvind Srivastava

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Abhinava Upadhyay, J.

Hon'ble Jayant Banerji, J.

On the request of Shri Baleshwar Chaturvedi, learned counsel for the respondents, the case is passed over. List again after one week. In the meantime he will prepare the case.

Order Date :- 27.3.2019

Sunil Kr. Gupta

(Jayant Banerji, J.) (Abhinava Upadhyay, J.)

Court No. - 37

Case :- WRIT - C No. - 54627 of 2017

Petitioner :- Ruby Ice Factory Thru Prop.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Arvind Srivastava

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Abhinava Upadhya,J.

Hon'ble Ravi Nath Tilhari,J.

The case is passed over for the day on the illness slip of Shri Arvind Srivastava, learned counsel for the petitioner.

Order Date :- 16.12.2019

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Hon'ble Ravi Nath Tilhari,J. Hon'ble Abhinava Upadhya,J.

Court No. - 46

Case :- WRIT - C No. - 54627 of 2017

Petitioner :- Ruby Ice Factory Thru Prop.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Arvind Srivastava

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Naheed Ara Moonis,J.

Hon'ble Vivek Varma,J.

Learned counsel for the petitioner seeks adjournment of the case to which Sri Baleshwar Chaturvedi, the learned counsel appearing on behalf of the respondent has no objection.

Let the matter be placed as unlisted in the week commencing 2nd November, 2020.

Order Date :- 20.10.2020

Shahnawaz

Court No. - 46

Case :- WRIT - C No. - 54627 of 2017

Petitioner :- Ruby Ice Factory Thru Prop.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Arvind Srivastava

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Naheed Ara Moonis,J.

Hon'ble Vivek Varma,J.

On the request being made by the learned counsel for the petitioner, let the matter be placed in the week commencing 24th November, 2020 in the additional cause list.

Order Date :- 3.11.2020

Ashish

Court No. - 29

Case :- WRIT - C No. - 54627 of 2017

Petitioner :- Ruby Ice Factory Thru Prop.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Arvind Srivastava

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Munishwar Nath Bhandari,J.

Hon'ble Saurabh Shyam Shamshery,J.

Let this petition be listed on **16.12.2020** enabling the counsel for the respondents to prepare on the issue in reference to Section 126 (3) of the Indian Electricity Act, 2003 as well as U.P. Electricity Supply Code, 2005 to find out whether personal presence of the assessee is required.

Order Date :- 24.11.2020

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Court No. - 40

Case :- WRIT - C No. - 54627 of 2017

Petitioner :- Ruby Ice Factory Thru Prop.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Arvind Srivastava

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Manoj Misra,J.

Hon'ble Rohit Ranjan Agarwal,J.

List after two weeks.

Order Date :- 22.2.2021

V.S.Singh

Court No. - 40

Case :- WRIT - C No. - 54627 of 2017

Petitioner :- Ruby Ice Factory Thru Prop.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Arvind Srivastava

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Manoj Misra,J.

Hon'ble Rohit Ranjan Agarwal,J.

Case called out. None present from either side.

The Court has been informed that lawyers are abstaining from work today.

Put up this matter in the week commencing 05th April, 2021.

Order Date :- 10.3.2021

Sunil Kr Tiwari

Court No. - 21

Case :- WRIT - C No. - 54627 of 2017

Petitioner :- Ruby Ice Factory Thru Prop.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Arvind Srivastava

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

The submission is that no specific date for hearing was fixed by the respondents nor the petitioner was provided hearing before passing the impugned assessment order.

It is urged that under Clause 8.1(b)(iii & iv), it is mandatory to provide personal hearing to the consumer before passing final assessment order.

Sri Mata Prasad, Advocate holding brief of Sri Baleshwar Chaturvedi, learned counsel appearing for Electricity Department prays for and is granted a week's time to obtain instructions and file affidavit on the said aspect.

List on 19.1.2023.

Order Date :- 12.1.2023

Bhaskar

(Vikram D. Chauhan, J.) (Manoj Kumar Gupta, J.)

Court No. - 21

Case :- WRIT - C No. - 54627 of 2017

Petitioner :- Ruby Ice Factory Thru Prop.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Arvind Srivastava

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

As prayed by counsel for the petitioner, list on 3.2.2023.

(Vikram D. Chauhan J.) (Manoj Kumar Gupta, J.)

Order Date :- 19.1.2023

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Court No. - 21

Case :- WRIT - C No. - 54627 of 2017

Petitioner :- Ruby Ice Factory Thru Prop.

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Arvind Srivastava

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

The instant petition has been filed challenging the order dated 30.8.2017 finalizing the provisional assessment. The petitioner has also challenged the recovery certificate and citation issued in pursuance of the order dated 30.8.2017.

On 12.1.2022, following order was passed:

"The submission is that no specific date for hearing was fixed by the respondents nor the petitioner was provided hearing before passing the impugned assessment order.

It is urged that under Clause 8.1(b)(iii & iv), it is mandatory to provide personal hearing to the consumer before passing final assessment order.

Sri Mata Prasad, Advocate holding brief of Sri Baleshwar Chaturvedi, learned counsel appearing for Electricity Department prays for and is granted a week's time to obtain instructions and file affidavit on the said aspect.

List on 19.1.2023."

In compliance of the said order, respondent Nos.2 and 3 have filed their affidavit and in paragraph 4 thereof, it is stated that although notice was issued inviting objection, but inadvertently date and time for personal hearing was not notified.

Counsel for the respondent-Electricity Department does not dispute that under Clause 8.1(b)(iii & iv), it was mandatory to provide personal hearing to the petitioner. He states that the respondents are ready to afford personal hearing to the petitioner. He has further submitted that the date in this respect may be fixed by the Court and on that date, respondent will hear the petitioner.

Accordingly, the impugned assessment order is hereby quashed and the instant petition is disposed of as follows:

(a) The petitioner will appear before the respondent No.4 for personal hearing on 22nd February, 2023.

(b) If for some reason hearing does not take place on that date, respondent No.4 will notify a date for personal hearing within next one week and will finalize the proceeding without any delay.

(c) In case, the petitioner fails to appear on the date fixed by this Court or on the adjourned date as may be fixed by respondent No.4, it would be open to the said respondent to proceed to pass a fresh order in accordance with law.

Order Date :- 3.2.2023

D. Tamang

(Vikram D. Chauhan,J.) (Manoj Kumar Gupta,J.)